

**Affidavit of Julien Caron,
President of Norac USA
(Parent to Bakerly LLC)
June 13, 2023**

I, Julien Caron, state the following facts, based upon my own personal knowledge and belief:

1. During the shipments at issue in the Seafrigo Federal Maritime Commission proceeding, I was the President of Norac USA, the parent company of Bakerly LLC.

Christmas 2021

2. Seafrigo made misstatements in its Supplemental Proposed Findings of Fact (SPFF) and Responses to Bakerly's Proposed Findings of Fact (PFF) related to events on or about Christmas time, 2021.

3. Seafrigo stated:

On the day before Christmas in 2021, Mr. Caron, the CEO of Bakerly contacted Jérôme Lorrain, the CEO of Seafrigo and asked that held containers be released. Declaration of Jérôme Lorrain (Lorrain Dec.) at 8. At that time, Seafrigo USA had insufficient funds (due to Bakerly not having paid its invoices) to obtain their release. Id. at 9. Nonetheless, in a gesture of goodwill, Seafrigo made extraordinary efforts to raise the necessary funds to pay the terminals and obtain the release of the containers so as to allow Bakerly to continue its operations. Id.

SPFF 148, Seafrigo Resp. to Bakerly PFF 163

4. During December 2021, Seafrigo was threatening to stop paying demurrage to the port and the carriers. *See* Al Raffa Email, attached as Exhibit 1.
5. Exhibit 1 shows that Al Raffa stated that Seafrigo would no longer pay demurrage on behalf of Bakerly until an agreement was reached. Raffa directed that we could pay for the charges directly through a tool called PayCargo.
6. I sent a draft email internally to my team in response to Al Raffa's email (Exhibit 1).
7. The email was sent to Fabian Milon, Angela Vieira, and Charles Lefort.
8. The email (attached as Exhibit 2), which I did not send to Al Raffa, told Al Raffa that it was clear that he believed that we should be paying for demurrage regardless of the circumstance. I wrote that we disagreed on that point and that we were in the process of preparing a claim based on the legal precedent and legal advice received by Bakerly. I went on to say that I did not see how Bakerly paying the port helped the situation. Seafrigo bore the responsibility for finding drivers, knew when the containers arrived—and further it did not share that information with Bakerly in real time. I asked him to

wait until our discussion on January 6, 2022, to make such a radical change. On the other hand, I offered that we would pay the ports directly and would deduct those payments from the ongoing freight and storage payments, until our claim with Seafrigo were resolved. This was based on the fact that Seafrigo had assumed and was being paid for delivery to Bakerly's U.S. warehouse facilities.

9. Following that email to my team (Exhibit 2), I called Jerome and told him exactly what I had written in the email (Exhibit 2) that I did not send. Essentially, I told Jerome that it was their responsibility to find drivers and to pick up containers at the port. Even if we wanted to do it ourselves it would be close to impossible given that we do not have the necessary information on a timely basis.
10. Obviously, we needed the products to not disturb our business. From what I recall I explained that the situation we were in was not Bakerly's fault, I asked Seafrigo to continue paying for the demurrage fees to release the containers, and told them to provide proof that this was Bakerly's fault if they wanted us to refund them.

Warehouses

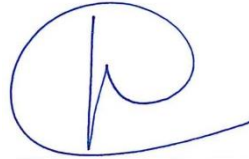
11. Seafrigo draws conclusion from Lineage's performance and ascribes them to all of Bakerly's warehouses.
12. Specifically, in Seafrigo PFF 85, Seafrigo states:

In January of 2022, after Bakerly inexplicably had rehired Lineage despite Lineage's myriad shortcomings, it was Lineage that admitted that it could not handle the volume of Bakerly containers and that 81 of its employees were absent from work. Raffa Dec. at 38.
13. In fact this was an erroneous statement since Lineage was not rehired in January 2022 as we never stopped doing business with them. Seafrigo could also attest to that as they were still delivering containers to that location during the second half of 2021.
14. Additionally, Seafrigo cannot extrapolate from Lineage's shortcomings to explain 100% of the demurrage incurred in January 2022 as it is only isolated to the Lineage, PA warehouse. In January 2022 we received 91 containers with Seafrigo and only 10 of them were delivered to the Lineage, PA location. Based on this, 11% of all Seafrigo containers for the month went to Lineage. We incurred \$543,117.37 in demurrage in January 2022. A rapid math without going to the transaction level would only apply \$59,683.23 to the Lineage, PA location out of the whole \$543,117.37 if we use the 11% logic which is reasonable.

VERIFICATION

I, Julien Caron, declare, under penalty of perjury, pursuant to 28 U.S.C. § 1746, that the foregoing statements are true and correct to the best of my knowledge and belief. Further, I am aware that any intentionally false or misleading statement, representation or document that I provide in support of this proceeding may subject me to prosecution for violation of Federal law punishable by a fine of not more than \$10,000.00 or imprisonment of not more than 5 years, or both. (18 U.S.C. § 1001)

Dated: June 13, 2023

A handwritten signature in blue ink, consisting of a large capital 'C' followed by a stylized 'R' and a horizontal line extending to the right.

Julien Caron
President of Norac USA
2 & 3 Place Hoche - CS 96 417 - 35064
RENNES CEDEX
FRANCE
julien@bakerly.com

Exhibit 1

From: Al Raffa <a.raffa@seafrigo-usa.com>
Sent: Thursday, December 23, 2021 2:48 PM
To: Charles Lefort; Julien Caron; Fabian Milon
Cc: Jerome Lorrain; Kevin Esposito
Subject: Bakerly - Demurrage

Importance: High

Good Afternoon,

Given our last exchanges on the subject of demurrage, and for the sake of not experiencing any future business interruption, Seafrigo will no longer pay demurrage on behalf of Bakerly from this point forward until we reach an agreement.

If any future containers require demurrage, we will inform your team, and you will be responsible for paying the charges directly to the source (source being the terminals and/or steamship lines).

As an alternative, we would like to introduce you to a well-known tool called PayCargo.

PayCargo is a user friendly website and pays vendors "real-time".

As a matter of fact, this is the tool that Seafrigo uses in order to pay all of the demurrage for Bakerly's business real time to secure capacity for you.

If you choose this route, go onto their website and create an account ASAP.

Here is the website.

<https://paycargo.com/>

Let us know if you have any further questions.

Best Regards,



e. a.raffa@seafrigo-usa.com
w. <https://seafrigo-america.com>
t. +1 (201) 770-1143 x1010
m. +1 (201) 221-6316
d. +1 (908) 409-4110

a. 735 Dowd Avenue, Elizabeth, NJ 07201

Scanned by Barracuda network System antispam/antivirus Seafrigo USA

Exhibit 2

From: Julien Caron
Sent: Friday, December 24, 2021 8:07 AM
To: Fabian Milon; Angela Vieira; Charles Lefort
Subject: FW: Bakerly - Demurrage

Proposition de réponse

Al

It is clear you believe we should be paying for demurrage no matter the circumstance.
As you know, we disagree and are in the process of preparing a claim.
There is legal precedent in our favor and our lawyers believe we have a viable claim.
We were planning to explain further in our meeting on January 6th.

I don't see how asking us to pay the port directly helps the situation.
You are still responsible for finding drivers, you know when the containers come in, you don't share the information with us in real time...
Would you consider waiting until our discussion on January 6th to make this radical change?

Alternatively, we will do as you say (pay directly) and deduct the paid amount from our ongoing freight and storage payments, until our claim with you is resolved.

Julien

From: Fabian Milon <Fabian@bakerly.com>
Sent: Friday, December 24, 2021 3:57 AM
To: Angela Vieira <angela@bakerly.com>
Cc: Julien Caron <Julien@bakerly.com>; Charles Lefort <Charles@bakerly.com>
Subject: Re: Bakerly - Demurrage

Hello Guys,
Available as well to jump on the call.
Julien, you send us an invite?
Thanks
Fabian